

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an Appeal in terms of an
application under and in terms of Section
331 of the Code of Criminal Procedure Act
No. 15 of 1979**

The Democratic Socialist Republic of
Sri Lanka

Complainant

Court of Appeal Case No:

CA/HCC/0172/25

High Court of Jaffna

Case No. HC/2762/2019

Vs,

Moothathamby Sri Mayakrishnan
Kudavaththai,
Thunnalai East,
Karavetti

Accused

And Now Between

Moothathamby Sri Mayakrishnan
Kudavaththai,
Thunnalai East,
Karavetti

Accused-Appellant

Vs,

The Democratic Socialist Republic of
Sri Lanka

Complainant-Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Nihara Randeniya with Mohomed Azeem for the Accused-Appellant.

Azard Navavi, A.S.G, PC for the Respondent

Argued on: 02.09.2026

Judgment on: 22.09.2026

Judgment

Amal Ranaraja. J.

1. The accused-appellant (hereinafter referred to as the appellant) has been indicted in the High Court of Jaffna in Case No. 2762/2019. The charge in the indictment is as follows;

01. That on or about the 20th of July, 2015 at a place known as *Nelliady* in *Karaveddy*, within the jurisdiction of this Court, you the accused above named, by causing the death of *Thuraisingham Prakas*, have committed murder, an offence punishable under Section 296 of the Penal Code.

2. At the conclusion of the trial, the learned High Court Judge has convicted the appellant of a lesser charge i.e. an offence punishable under Section 297 of the Penal Code and sentenced him as follows;

- i. A term of 10 years rigorous imprisonment and a fine of Rs.25,000.00 with a term of 6 months simple imprisonment in default.

The appellant has also been directed to pay a sum of Rs.20,000.00 as compensation with a term of 1 year simple imprisonment in default

3. The appellant being aggrieved by the conviction, disputed judgement together with the sentencing order has preferred the instant appeal to this Court.

Case of the Prosecution

4. On the date of the alleged incident, PW01 and the deceased have been conversing on a lane named *Parayankulam* at about 22.00 hours. The appellant has then approached them. The deceased, a former associate of the appellant, has asked the appellant if he had any alcohol with him, or where he had obtained it. Seemingly provoked by this question, the appellant has drawn a sharp edged weapon and stabbed the deceased in the chest.
5. Following the attack, the appellant has fled the scene. Although PW01 had given chase to the appellant, he has subsequently returned to the location of the incident. Thereafter, the deceased has been hospitalised. He has later succumbed to the injury. A postmortem examination has been conducted on the deceased and the postmortem report prepared thereafter, has been produced as evidence marked P1.

Case of the Appellant

6. The appellant has opted to exercise his right to remain silent.

7. When the matter was taken up for argument the appellant contended that PW01's intoxication, together with the surrounding conditions, especially the inadequate lighting, has rendered PW01 incapable of identifying the person who attacked the deceased.
8. The importance of identifying a perpetrator of a crime cannot be overstated. It is essential for delivering justice to victims, deterring future criminal conduct, and maintaining public trust in the criminal justice system. Effective identification of perpetrators strengthens the foundation of society, promoting a sense of safety and collective responsibility. As such the relevant agencies must prioritise and enhance their efforts in accurately and efficiently identifying those who commit crimes.
9. Eyewitness testimony has long been considered a cornerstone of the criminal justice system, providing a direct link between the crime and its purported perpetrator. The conditions under which an eyewitness views a crime play a crucial role in shaping their testimony. Factors such as lighting, distance, and duration of the incident can significantly affect the quality of the witness's memory. In cases where the crime is committed quickly, or in less than ideal conditions, the likelihood that a witness will successfully identify the perpetrator diminishes.
10. Research has also demonstrated that high stress situations can impair the ability to accurately perceive and later recall events. For instance, during a violent crime, a witness may focus on the weapon, rather than the assailant's features.
11. In the case of *R v Turnbull (Raymond)*, [1977] Q.B. 244 (1976), Lord Widgery C.J. has held as follows;

"First, whenever the case against an accused depends wholly or substantially on the correctness of one or more identifications of the

accused which the defence alleges to be mistaken, the judge should warn the jury of the special need for caution before convicting the accused in reliance on the correctness of the identification or identifications. In addition he should instruct them as to the reason for the need for such a warning and should make some reference to the possibility that a mistaken witness can be a convincing one and that a number of such witnesses can all be mistaken. Provided this is done in clear terms the judge need not use any particular form of words.

Secondly, the judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made. How long did the witness have the accused under observation? At what distance? In what light? Was the observation impeded in any way, as for example by passing traffic or a press of people? Had the witness ever seen the accused before? How often? If only occasionally, had he any special reason for remembering the accused? How long elapsed between the original observation and the subsequent identification to the police? Was there any material discrepancy between the description of the accused given to the police by the witness when first seen by them and his actual appearance? If in any case, whether it is being dealt with summarily or on indictment, the prosecution have reason to believe that there is such a material discrepancy they should supply the accused or his legal advisers with particulars of the description the police were first given. In all cases if the accused asks to be given particulars of such descriptions, the prosecution should supply them. Finally, he should remind the jury of any specific weaknesses which had appeared in the identification evidence.

Recognition may be more reliable than identification of a stranger; but even when the witness is purporting to recognise someone whom he knows, the jury should be reminded that mistakes in recognition of close relatives and friends are sometimes made.

All these matters go to the quality of the identification evidence. If the quality is good and remains good at the close of the accused's case the danger of a mistaken identification is lessened, but the poorer the quality, the greater the danger.

*In our judgment when the quality is good, **as for example when the identification is made after a long period of observation, or in satisfactory conditions by a relative, a neighbour, a close friend, a workmate and the like, the jury can safely be left to assess the value of the identifying evidence even though there is no other evidence to support it:** provided always, however, that an adequate warning has been given about the special need for caution.” (Emphasis added)*

12. However, it has to be noted that the aforementioned Turnbull Principles would apply, only in certain circumstances. In the case of *Sigera Vs. The Attorney General* [2011] 1 SLR 201, Ranjith Silva J, has held,

“To apply Turnbull principles the identification had to be made under difficult circumstances. In this case, although the incident took place during night, there was ample light shed by the bulb of the lamp post that was burning. There was no congregation of a multitude of persons in a crowd but only the Accused Appellant and the deceased. In order to inflict the injuries on the deceased, the assailant had to come very close to the deceased. The injuries could not have been caused from a distance. According to the Government Analyst the shooting had taken

place from a short distance. In fact it had to be done at close quarters and the distance couldn't have been more than an arm's-length. A bulb was lit and the Appellant was a well known person who lived in the neighbourhood, in the same vicinity for a long time. These uncontroverted facts prove that there was ample light and ample time for the deceased to identify the Appellant.

13. Further, in the case of *Bhola Singh vs. State of Punjab* 1994 SC 13, it was held,

"If the light available was sufficient for the accused to identify their targets there is no reason to hold that the injured eyewitnesses and other witnesses could not identify the assailants. It is nobody's case that the appellants were strangers. Hence, there was no difficulty in identifying them."

14. In the matter at hand, the appellant identified as the perpetrator of the crime, was known to, and familiar with PW01. This prior familiarity suggests a basis for reliable recognition. The scene of the incident has been illuminated by moonlight, indicating that there was sufficient natural light for visibility. The crime itself has occurred in very close proximity to where PW01 was standing, providing an unobstructed view of events. Furthermore, PW01 has actively pursued the appellant, allowing for an extended period of observation, and further confirming the appellant's identity through sustained visual contact.

15. The complaint has also been lodged promptly with the police, directly implicating the appellant as the individual who committed the crime. The immediate nature of this complaint helps ensure the freshness of the witness's memory and reduces the opportunity for external influence. These combined circumstances significantly reduce the possibility of a mistaken identity.

16. They also confirm PW01's awareness of his surroundings and his ability at that time to act appropriately.
17. In those circumstances, I am not inclined to interfere with the conviction, disputed judgement, together with sentencing order and proceed to affirm the same.
18. The substantive term of imprisonment shall commence from the date this judgement is read out and explained to the appellant in the High Court of Jaffna.
19. I dismiss the appeal but make no order regarding costs

Appeal dismissed.

20. The Registrar of this Court is directed to send this Judgement to the High Court in *Jaffna* for information and compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal